

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

March 3, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 1078

By: Murdock

```
[ combined pesticide law - warning labels -  
codification - effective date ]
```

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3-97 of Title 2, unless there is created a duplication in numbering, reads as follows:

Notwithstanding any provision to the contrary, for any pesticide registered with the United States Environmental Protection Agency under the Federal Insecticide, Fungicide, and Rodenticide Act, 7 U.S.C., Section 136 et seq., the label approved by the United States Environmental Protection Agency in registering the pesticide, or a label consistent with the most recent human health assessment performed under the Federal Insecticide, Fungicide, and Rodenticide Act, or a label consistent with the United States Environmental Protection Agency carcinogenicity classification for the pesticide under the Federal Insecticide, Fungicide, and Rodenticide Act, shall be sufficient to satisfy any requirements for a warning regarding

1 health or safety under Oklahoma state law, including, without
2 limitation, the duty to warn, or any other common law duty to warn
3 if:

4 1. Approved by the Environmental Protection Agency under the
5 Federal Insecticide, Fungicide, and Rodenticide Act and by the
6 Oklahoma Department of Agriculture, Food, and Forestry at the time
7 of sale;

8 2. Consistent with the most recent human health assessment
9 performed by Environmental Protection Agency under the Federal
10 Insecticide, Fungicide, and Rodenticide Act at the time of sale; or

11 3. Consistent with the Environmental Protection Agency
12 carcinogenicity classification for the pesticide under the Federal
13 Insecticide, Fungicide, and Rodenticide Act at the time of sale.

14 SECTION 2. This act shall become effective November 1, 2025.

15 COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE
16 March 3, 2025 - DO PASS AS AMENDED BY CS
17
18
19
20
21
22
23
24